

Court No. - 34

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate

Hon'ble Sudhir Agarwal,J.

Hon'ble Mukhtar Ahmad,J.

1. It is contended even if the allegations contained in first information report are taken to be true, the fact is that electric connection sanctioned for domestic purposes governed by tariff LMV-I was being used in the office of housing society, which is also only for the purpose of maintenance of residential society and not for any commercial purposes, therefore, the allegation that connection was being used for the purpose, other than one for which it was granted, is patently illegal and no offence under Section 135 of Electricity Act, 2003 is made out.

2. In our view, the matter requires consideration.

3. Learned A.G.A., representing respondents no. 1 and 2, prays for and is allowed two weeks time to file counter affidavit.

4. Issue notice to respondent no. 3 returnable at an early date. Step be taken within a week.

5. Until further orders of this Court, further proceedings pursuant to first information report dated 03.06.2015, registered as Case Crime No. 0535 of 2015, under Section 135 of Electricity Act, 2003, Police Station Vrindavan, District Mathura, shall remain stayed.

Order Date :- 24.6.2015

AK

Court No. - 40

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate

Hon'ble Bala Krishna Narayana,J.

Hon'ble Naheed Ara Moonis,J.

Sri Baleshwar Chaturvedi, Advocate who has accepted notice on behalf of the respondent no.3 prays for and is allowed four weeks' time to file counter affidavit.

Learned counsel for the petitioner shall supply copy of the writ petition to learned counsel for the respondent no.3 during the course of the day.

Rejoinder affidavit, if any, may be filed within two weeks' thereafter.

List after six weeks'.

Order Date :- 30.10.2015

Abhishek Sri.

Court No. - 40

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate

Hon'ble Bala Krishna Narayana,J.

Hon'ble Naheed Ara Moonis,J.

Learned counsel for the respondents prays for and is allowed three weeks' further time to file counter affidavit.

List this case on 19.1.2016.

Order Date :- 22.12.2015

RU

Court No. - 40

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate

Hon'ble Bala Krishna Narayana,J.

Hon'ble Naheed Ara Moonis,J.

List this matter in the next cause list showing the name of Shri Baleshwar Chaturvedi as counsel for power corporation (respondent no.3).

Order Date :- 19.1.2016

RU

Court No. - 40

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate, Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana, J.

Hon'ble Naheed Ara Moonis, J.

Sri Bidhan Chandra Rai, learned counsel for the petitioner has given an undertaking that he will supply the copy of the writ petition to Sri Baleshwar Chaturvedi, learned counsel for the U.P. Power Corporation, respondent no. 3 during the course of the day.

Learned counsel for the respondent no. 3 may file his counter affidavit within three weeks. Rejoinder affidavit, if any, may be filed within two weeks' thereafter.

List immediately after five weeks.

Order Date :- 27.1.2016

Faridul

Court No. - 40

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate, Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana, J.

Hon'ble Naheed Ara Moonis, J.

Shri Baleshwar Chaturvedi, learned counsel appearing for the respondent no.3 prays for and is allowed three weeks further and no more time to file counter affidavit.

The petitioner will have a week thereafter to file rejoinder affidavit.

List this matter immediately after four weeks.

Order Date :- 1.3.2016

RU

Court No. - 40

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate, Baleshwar
Chaturvedi

Hon'ble Bala Krishna Narayana, J.

Hon'ble Shashi Kant, J.

Case is passed over for the day on the illness slip of Sri Bidhan Chandra Rai, learned counsel for the petitioner.

List in the next cause list.

Order Date :- 31.3.2016

A. Verma

Court No. - 32

Case :- CRIMINAL MISC. WRIT PETITION No. - 15159 of 2015

Petitioner :- Brijraj Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Govt. Advocate, Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Pramod Kumar Srivastava, J.

Heard learned Counsel for the petitioner and learned AGA. This writ petition was entertained and an interim order was passed expressing a *prima facie* view that the allegation that the usage by the electric connection of the petitioner was not for any commercial purpose and was therefore not covered under the provisions of Section 135 (e) of the Electricity Act, 2003 and the Electricity Supply Code 2005.

The contention of the learned counsel for the petitioner is that the situation of an office within the premises which was for maintaining the security of the Society and its residents will not amount to a commercial activity and therefore, the allegation made in the FIR to the effect that the premises was a site office is an absolutely incorrect assertion and no offence is made out so as to prosecute the petitioner or charge the petitioner with any said alleged offence of theft. Learned counsel for the petitioner therefore submits that in the absence of any other usage of electricity other than domestic purpose, no offence being made out the FIR deserves to be quashed.

We have considered the submissions raised and apart from other denial of the contents of the FIR, paragraph - 13 of the writ petition states as follows:-

*"13. That the rate schedule LMV-2 is applicable for non-domestic light, fan and power. The commercial activity falls under rate schedule LMV-2. **The office constructed by the society inside the boundary walls of the Brijdhan Apartment for maintaining the security of the society and the going-on's thereof do not fall under commercial/non-domestic activities.** Thus the allegation made in the FIR that 5 KW load was being used for non-domestic purpose is factually incorrect and legally unsustainable. ..."*

We further find from the rates of the tariff for LMV - 1 the clause of applicability states as under:

"RATE SCHEDULE LMV - 1:

DOMESTIC LIGHT, FAN & POWER:

1. APPLICABILITY:

This schedule shall apply to:

a) Premises for residential/domestic purpose, Paying Guests/domestic purpose (Excluding Guest Houses), Janata Service Connections, Kutir Jyoti Connections, Jhuggi/Hutments, Places of Worship (e.g. Temples, Mosques, Gurudwaras, Churches) and Electric Crematoria.

b) Mixed loads

i.. 50 KW and above

a. Registered Societies, Residential Colonies/Townships, Residential Multi-Storied Buildings with mixed loads (getting supply at single point) with the condition that 70% of the total contracted load shall be exclusively for the purposes of domestic light, fan and power. The above mixed load, within 70%, shall also include the load required for lifts, water pumps and common lighting.

b. Military Engineer Service (MES) for Defence Establishments (Mixed load without any load restriction).

ii. Less than 50 KW

Except for the case as specified in Regulation 3.3 (e) of Electricity Supply Code, 2005 as amended from time to time, if any portion of the load is utilized for conduct of business for non-domestic purposes then the entire energy consumed shall be charged under the rate schedule of higher charge."

A perusal of the facts of this case indicates that the connection is less than for 50 KW and therefore, clause 1 (b) (ii) quoted here-in-above is clearly attracted. The same category provides that if any portion of the load is utilized for conduct of business for non-domestic purpose then the entire energy consumed shall be charged under the rate schedule of higher charge. The aforesaid position that emerges on the allegations made in the writ petition, it appears that the petitioner admits the construction of an office inside the boundary wall of Brijdhan Apartments. The defence of the petitioner is that the site office is being used for stationing the security personnel only which is a domestic purpose.

We are unable to agree inasmuch as the allegation in the FIR is that the same is being used for a site office and the fact that there is an office constructed is admitted in paragraph - 13 of the writ petition. The nature of the activity in the office therefore cannot be assumed to be a domestic activity nor can the premises be said to be utilized for a domestic purpose. The allegation therefore in the FIR cannot be said to be without foundation. Accordingly, this will fall within the definition of a mixed load as indicated in the criteria of a less than 50 KW connection and consequently, the entire energy consumed would be at the rate schedule of higher charge, namely,

that of LMV - 2 and not LMV -1. In such a situation, it cannot be said that no offence is made out. In view of the aforesaid, no case is made out for interference. Even otherwise, the offence is compoundable.

The writ petition stands ***rejected***. Interim order stands discharged.

Order Date :- 7.4.2016

lakshman

[Pramod Kumar Srivastava, J.] [Amreshwar Pratap Sahi, J.]